

25VECV04188 25VECV04188

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-08-03

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Case Number: 25VECV04188 Hearing Date: August 3, 2026 Dept: 316

On November 12, 2025,

Plaintiffs Joseph Rangel and Emily Fabian filed their first amended complaint ("FAC") against Defendants SoFi Stadium, Apex Security Group, Inc., and DOES 1-100. The FAC alleges seven causes of action: (1) Negligence; (2) Bane Act; (3) Assault; (4) Battery; (5) Intentional Infliction of Emotional Distress; (6) False Arrest; and (7) Ralph Act.

On March 25, 2026, Defendants

filed a Motion to Compel the Deposition of Plaintiff Emili Fabian.

On July 21, 2026, Plaintiffs

filed an opposition.

On July 27, 2026, Defendants

filed a reply.

TENTATIVE

RULING

Defendants' Motion to

Compel the Deposition of Plaintiff Emili Fabian is GRANTED. Plaintiff Fabian is to appear for deposition on a mutually agreed date within thirty days of the Court's ruling unless Defendants agree to a later date. No later than five days before the deposition date, Defendants are to provide written confirmation that all video footage of the incident in their possession, custody or control has been produced to Plaintiffs.

Plaintiffs are ordered to

pay Defendants monetary sanctions in the amount of \$2,160 within thirty days of the Court's ruling.

LEGAL

STANDARD

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition shall give a notice in writing which states the specification of reasonably particularly of any materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) A properly served deposition notice is effective to require a party to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).) The party served with a deposition notice waives any error or irregularity, unless that party promptly serves a written objection at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).)

"If, after service of a deposition notice, a party to the action ... without having served a valid objection ... fails to appear for examination, or to proceed with it, or to produce for inspection any document ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

If the Court grants a motion to compel a deposition, it "shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

DISCUSSION

I.

Meet
and Confer

When filing a motion to
compel a deposition, said motion must be accompanied with a meet and confer
declaration. (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Here, when Plaintiffs
objected to Defendants' deposition notices, defense counsel sent an email to
find a mutually agreeable date to meet and confer. (See Brouses Decl., ¶¶ 5, 7,
9-10, 12, 14, 17.) These attempts were futile, however. (See id. at ¶¶
4, 8-10, 12, 14, 17.) Therefore, although the meet and confer requirement has
not been satisfied, the Court will still consider the merits of Defendants'
motion because defense counsel attempted in good faith to meet and confer to resolve
this matter.

II.
Deposition
of Fabian

The Court will compel the
deposition of Plaintiff Emili Fabian and order Plaintiffs to pay monetary
sanctions.

Here, Defendants seek to
compel the deposition of Plaintiff Emili Fabian. In August of 2025, Defendants served
its initial notice of Fabian's deposition for October 10, 2025, nearly ten
months ago. (Brouses Decl., ¶ 3.) Plaintiffs objected to this notice of
deposition. (Id. at ¶ 4.) Defendants attempted to meet and confer with Plaintiffs
to find a mutually agreeable date but got no response. (Id. at ¶¶ 5, 7.)
Accordingly, on December 2, 2025, Defendants issued an amended notice of
deposition. (Id. at ¶ 7.) Plaintiffs then objected to the amended notice
of deposition. (Id. at ¶ 8.) Defendants again attempted to meet and
confer with Plaintiffs to find a mutually agreeable date, but Plaintiffs did
not provide a proposed date for deposition at the time of the filing of this
motion. (Id. at ¶¶ 9-10, 12, 14, 17.)

Defendants have been
attempting to depose Fabian for almost a year now. And although Plaintiffs objected
to Defendants' noticed depositions, they did not timely provide any alternative

dates as of the filing of this motion. (See Brouses Decl., Exhs. 2-3, 6-7, 9-13.)

The Court does not find that Plaintiffs' objections were valid. For this reason, the Court shall compel the deposition of Plaintiff Fabian. (See Code Civ. Proc., § 2025.450, subd. (a).)

In opposition, Plaintiffs contend that it agreed to produce Fabian for deposition on May 15, 2026. (See Gage Decl., Exh. 14.) However, Plaintiffs agreed to this deposition date only after Defendants filed this motion. (See Brouses Decl., Exh. 12 and Gage Decl., Exh. 14 [showing that Plaintiffs' counsel took the deposition off calendar on March 19 and did not offer new dates, and then offered a deposition date on March 27, 2026, after the motion was filed].) Notably, Plaintiffs later postponed this agreed-upon deposition because Defendants allegedly failed to fully comply with Plaintiffs' prior production requests, and specifically surveillance footage of the subject incident. (See *id.* at Exhs. 19-20.) However, Defendants' alleged failure to fully comply with Plaintiffs' prior production requests does not relieve Plaintiffs of the responsibility to appear for deposition, particularly where no motion regarding the production has been filed.

With regard to the surveillance footage, it appears that Defendants ultimately provided surveillance footage of the subject incident. (See *id.* at Exh. 21 [Dropbox link of surveillance footage found in June 12 email exchange]; see also Doumar Decl., Exh. 15.) However, Defendants appear not to have confirmed that the produced footage is all of the footage of the incident in their possession, custody or control. While this discovery dispute does not prevent the Court from compelling Plaintiff Fabian's deposition, the Court believes that Defendants should adhere to their agreement to produce all video footage they have of the incident prior to the deposition taking place.

For these reasons, the Court will compel the deposition of Plaintiff Emili Fabian. Plaintiff Fabian is to appear for deposition on a mutually agreed date within thirty days of the Court's ruling unless Defendants agree to a later date. No later than five days before the deposition date, Defendants are to provide written confirmation that all video footage of the incident in their possession, custody or control has been produced to Plaintiffs.

III.

Sanctions

Defendants request

monetary sanctions in the amount of \$4,960. The Court finds that sanctions are mandatory as Plaintiffs did not have substantial justification for their failure to provide deposition dates prior to the filing of this motion. The Court finds the requested rate of \$350 per hour to be reasonable. The Court finds the requested 14 hours to be excessive. While the parties felt it necessary to attach dozens of exhibits to the motion, opposition and reply briefs as well as extensive argument, the motion is ultimately about getting one deposition scheduled. The Court finds that an appropriate sanction is six hours of attorney time at the requested rate for a total of \$2,100, plus the filing fee of \$60.

CONCLUSION

For the foregoing reasons,

Defendants' Motion to Compel Deposition of Plaintiff Emili Fabian is GRANTED. Plaintiff Fabian is to appear for deposition on a mutually agreed date within thirty days of the Court's ruling unless Defendants agree to a later date. No later than five days before the deposition date, Defendants are to provide written confirmation that all video footage of the incident in their possession, custody or control has been produced to Plaintiffs.

Plaintiffs are also ordered

to pay Defendants monetary sanctions in the amount of \$2,160 within thirty days of the Court's ruling.